

Licensure Code of Professional Conduct for Ohio Educators



Licensure Code of Professional Conduct for Ohio Educators

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Introduction

Educators are entrusted by the public with the responsibility of providing a high-quality education to each student. Through various roles, these professionals devote themselves to providing a safe and nurturing environment in which all students can learn. In alignment with the Standards for Ohio Educators and Ohio's Learning Standards, Ohio's educators strive for excellence through the high expectations they hold for themselves and their students. The professional conduct of every educator affects attitudes toward the profession. Educators are trustees of the profession and share with the broader community the responsibility of providing high-quality public education. Educators recognize the need to balance the demands of the profession by caring for their own physical and emotional well-being in order to successfully carry out their professional responsibilities.

Aware of the importance of maintaining the confidence and trust of students, parents, colleagues and the public, Ohio educators maintain the highest degree of professional conduct for themselves and their peers. Ohio educators are all individuals applying for a credential or individuals credentialed by the State Board of Education, and the Licensure Code of Professional Conduct for Ohio Educators serves as the basis for decisions on issues pertaining to licensure that are consistent with applicable law. It provides a guide for conduct in situations that have professional implications for all individuals, such as teachers, principals, superintendents, educational aides, coaches, substitute teachers and others credentialed by the State Board of Education.

Ohio is nationally known as a state that produces high-quality educators and recognizes that its 250,000 practicing educators hold the fundamental beliefs defined in the following nine principles:

1. Educators behave in a professional manner, realizing that one's actions reflect directly on the status and substance of the profession.
2. Educators maintain a professional relationship with all students at all times, both in and out of the classroom.
3. Educators accurately report information required by the local board of education or governing board, state education agency, federal agency or state or federal law.
4. Educators adhere to federal, state and local laws and statutes regarding criminal activity.
5. Educators comply with state and federal laws related to maintaining confidential information.
6. Educators serve as positive role models and do not use, possess or unlawfully distribute illegal or unauthorized drugs.
7. Educators ensure school property, public funds or fees paid by students or the community are used in the best interest of students and not for personal gain.
8. Educators fulfill all the terms and obligations in their employment contracts.
9. Educators use technology in a responsible manner and safeguard the electronic devices and data entrusted to them.

As education is a public trust, the Ohio Department of Education pursues allegations of unprofessional conduct. The Department recognizes that an accusation of misconduct is not conclusive proof that the educator engaged in conduct unbecoming. By law, educators are entitled to all due process rights, with each circumstance considered on a case-by-case basis to determine appropriate action. Not all referrals or investigations result in disciplinary action. The Licensure Code of Professional Conduct for Ohio Educators includes the presumptive range of applicable disciplinary actions involving any individual credentialed by the State Board of Education.

1. Professional Behavior

Educators shall behave as professionals, realizing their actions directly reflect on the status and substance of the education profession.

An educator serves as a positive role model to both students and adults and is responsible for preserving the dignity and integrity of the teaching profession and for practicing the profession according to the highest ethical standards.

Conduct unbecoming to the profession includes, but is not limited to, the following actions:

- a) Failing to adhere to the Licensure Code of Professional Conduct for Ohio Educators.
- b) Assisting another in committing an act of conduct unbecoming, as described in the Licensure Code of Professional Conduct for Ohio Educators.
- c) Having a continuing physical or mental inability, incapacity or addiction that significantly impacts the educator's ability to carry out his or her professional responsibilities and renders the educator incapable of safely maintaining the care, custody and control of students.
- d) Committing any violation of state or federal laws, statutes or rules although the conduct may not have resulted in a criminal charge, indictment, prosecution or conviction. (Except as noted in Principle 6(b), this does not include traffic violations.)
- e) Disparaging a colleague, peer, or other school personnel while working in a professional setting (teaching, coaching, supervising or conferencing) on the basis of race or ethnicity, socioeconomic status, gender, national origin, sexual orientation, political or religious affiliation, physical characteristics, age, disability or English language proficiency.
- f) Harassing, intimidating, or retaliating against a colleague, peer, or other school personnel.
- g) Sexually harassing any student, minor or adult in the school community.
- h) Failing to complete a criminal background check, as required by state or federal law.
- i) Violating local, state or federal procedures related to the security of standardized tests, test supplies or resources.
- j) Negligently failing to verify, prior to hiring, recommending for employment, or issuing payment, except as permitted by law, that an educator possesses the appropriate credential type for the educator's position (for example, the appropriate credential type means a teacher must possess a teaching credential, principal a principal credential, superintendent a superintendent credential, etc.).
- k) Accepting or holding employment that requires the educator to engage in activities or duties outside the scope of the educator's credential type.
- l) Being disciplined by another state educational entity or other professional licensing board or entity for unethical conduct.
- m) Committing an act of academic dishonesty (for example, plagiarism, falsification, fabrication, sabotage, or cheating in an academic setting).
- n) Engaging in nepotism, as prohibited by local, state, or federal law.

The disciplinary actions for violations of Principle 1 can be found on [page 13](#).

2. Professional Relationships with Students

Educators shall maintain a professional relationship with all students at all times, both in and out of the classroom.

An educator's responsibility includes nurturing the intellectual, physical, emotional, social and civic potential of all students and providing a safe environment free from harassment, intimidation and criminal activity. An educator creates, supports and maintains an appropriate learning environment for all students and fulfills the roles of trusted confidant, mentor and advocate for students' rights while maintaining appropriate professional, emotional and social boundaries. An educator must serve as a champion against child abuse and be cognizant of student behaviors that suggest abuse or neglect.

Conduct unbecoming includes, but is not limited to, the following actions:

- a) Committing any act of sexual abuse of a student or minor or engaging in inappropriate sexual conduct with a student or minor.
- b) Committing an act of cruelty to children or an act of child endangerment (for example, physical, psychological, or emotional abuse).
- c) Soliciting, encouraging, engaging or consummating an inappropriate relationship with any student, minor, or individual who was a student in the preceding twelve months.
- d) Engaging in grooming a student or minor (befriending and establishing an emotional connection with a student or minor or a student's or minor's family to lower the student's or minor's inhibitions for the purpose of an inappropriate emotional, romantic or sexual relationship).
- e) Disparaging a student on the basis of race or ethnicity, socioeconomic status, gender, national origin, sexual orientation, political or religious affiliation, physical characteristics, academic or athletic performance, disability or English language proficiency.
- f) Using inappropriate language, gestures or signs at any school-related activity (such as racial slurs, or biased, lewd or lascivious expressions).
- g) Provoking an altercation with or between students or engaging in a physical altercation with students that is not for the purpose of ensuring the health, safety, and welfare of students.
- h) Failing to provide appropriate supervision of students, within the scope of the educator's official capacity, which risks the health, safety and welfare of students or others in the school community.
- i) Knowingly contributing to or failing to intervene in the harassment, intimidation, or bullying of a student.

The disciplinary actions for violations of Principle 2 can be found on [page 13](#).

3. Accurate Reporting

Educators shall accurately report information required by the local board of education or governing board, state education agency, federal agency or state or federal law.

An educator communicates appropriate representation of facts concerning qualifications for professional practice, student information, school board policy and other educational matters. An educator must notify the superintendent or designee, of any conduct by a licensed educator that substantially impairs his or her ability to function professionally or is detrimental to the health, safety and welfare of students. It is not considered conduct unbecoming for an educator to, in good faith, notify a superintendent as required by this principle and said educator shall not be the subject of retaliation.

Conduct unbecoming includes, but is not limited to, the following actions:

- a) Falsifying, intentionally misrepresenting, willfully omitting or being negligent in reporting information submitted to federal, state and other governmental agencies including, but not limited to, staff, student, district, and financial data and information submitted in the course of an official inquiry or investigation.
- b) Falsifying, intentionally misrepresenting, willfully omitting or being negligent in reporting professional qualifications, criminal history, discipline of a professional license or credential, college or professional development credit and/or degrees, academic awards and employment history when applying for employment and/or licensure or when recommending an individual for employment, promotion or licensure.
- c) Falsifying, intentionally misrepresenting, willfully omitting or being negligent in reporting reasons for absences or leaves.
- d) Falsifying, intentionally misrepresenting, willfully omitting or being negligent in reporting information regarding the evaluation of students and/or personnel.
- e) Knowingly failing to notify the superintendent or designee upon becoming aware that an educator's ability to function in his or her position has been substantially impaired or of any conduct that is detrimental to the health, safety and welfare of students.
- f) Intentionally failing to make a mandated report of any violation of state or federal law.
- g) Directing, instructing, assisting or requesting another to commit an act described in Principle 3 of the Licensure Code of Professional Conduct for Ohio Educators.

The disciplinary actions for violations of Principle 3 can be found on [page 13](#).

4. Criminal Acts

Educators shall adhere to federal, state and local laws and statutes.

An educator shall not engage in criminal activity as evidenced by a criminal conviction, guilty plea, finding of guilt, or participation in a court-ordered diversion or treatment in lieu of conviction program.

Conduct unbecoming includes, but is not limited to, the following actions:

- a) A criminal offense that is an offense of violence, theft, drug abuse, or sexually-oriented offense as defined in Ohio Administrative Rule 3301-20-01 (for example, murder, rape, drug trafficking, kidnapping, robbery, felonious assault).
- b) A criminal offense that requires an educator to meet the rehabilitation standards, as defined in Ohio Administrative Code Rule 3301-20-01 (for example, assault, passing bad checks, fraud, domestic violence, possession of drugs).
- c) Conveying or possessing a deadly weapon or dangerous ordnance in a school safety zone, on school premises or at a school-related activity, unless authorized by state or federal law.
- d) A criminal offense that is not identified as an absolute bar offense or offense requiring rehabilitation pursuant to Ohio Administrative Code Rule 3301-20-01 and the offense involves a student, minor, school district, or school personnel.
- e) A criminal offense that is not identified as an absolute bar offense or offense requiring rehabilitation pursuant to Ohio Administrative Code Rule 3301-20-01 and the offense does not involve a student, minor, school district, or school personnel. (Except as noted in Principle 6(b), this does not include traffic violations.)

The disciplinary actions for violations of Principle 4 can be found on [page 14](#).

5. Confidentiality

Educators shall comply with local, state and federal laws related to maintaining confidential information.

An educator is entrusted with information that could be misused to embarrass or damage a student's reputation or relationship with others. Therefore, the educator has the responsibility to keep information about students confidential unless disclosure serves professional purposes, affects the health, safety, and welfare of students and others, is required by law, or parental permission has been given. An educator maintains the security of confidential information, such as academic and disciplinary records, testing materials, personal confidences, photographs, health and medical information, family status and/or income.

Conduct unbecoming includes, but is not limited to, the following actions:

- a) Willfully or knowingly violating any student confidentiality required by federal or state laws, including publishing, providing access to, or altering confidential student information on district or public websites, such as grades, personal information, photographs, disciplinary actions, or individualized educational programs (IEPs) without parental consent or consent of students 18 years of age and older.
- b) Using confidential student, family, or school-related information in a non-professional way (for example, gossip, malicious talk or disparagement).
- c) Violating local, state, or federal procedures or laws related to the confidentiality of standardized tests, test supplies, or resources.

The disciplinary actions for violations of Principle 5 can be found on [page 14](#).

6. Use, Possession, or Unlawful Distribution of Alcohol, Drugs and Tobacco

Educators shall not use, possess or unlawfully distribute illegal or unauthorized drugs. Educators shall not use alcohol during any school activity involving students, minors or underage persons. Educators shall not use tobacco during any school activity except in designated areas. Educators shall not furnish, provide or encourage students or underage persons to use, possess or unlawfully distribute alcohol, tobacco, or illegal or unauthorized drugs.

As a positive role model, an educator is entrusted with protecting the health, safety, and welfare of students at any school event. The use of alcohol or illegal or unauthorized drugs causes impairment of professional judgment that may potentially harm others. A professional educator must refrain from the illegal use of tobacco on any school grounds or at any school activity.

Conduct unbecoming includes, but is not limited to, the following actions:

- a) Being under the influence of, possessing, using or consuming illegal or unauthorized drugs.
- b) Engaging in habitual or excessive abuse of alcohol, as demonstrated by two or more alcohol-related convictions within a five-year span or a severe alcohol-related conviction (for example, a high blood alcohol content, significant injury or property damage, or incidents involving minors).
- c) Being on school premises in an official capacity (for example, teaching, coaching, supervising, or conferencing) or at any school activity involving students, minors or underage persons while under the influence, possessing, or consuming alcoholic beverages.
- d) Furnishing or providing tobacco, alcohol or illegal or unauthorized drugs to any student, minor, or underage person.
- e) Being on school premises or at any school activity involving students, minors or underage persons while using tobacco except in a designated area.
- f) Promoting the use of steroids, stimulants, or nutritional supplements to accelerate physical growth or contribute to the control of weight loss or weight gain to enhance physical performance.

The disciplinary actions for violations of Principle 6 can be found on [page 14](#).

7. Financial Management and Improper Compensation for Personal Gain

Educators shall ensure all school funds and accounts are managed in a responsible and transparent manner. Educators shall ensure school property, public funds or fees paid by students or the community are not used for personal gain. Educators shall not make decisions based upon gifts, gratuities, favors or the socioeconomic status of parents, family members, community members or businesses.

An educator is entrusted with public funds and school property in the course of performing job duties and maintains a high level of honesty, accuracy and accountability to ensure institutional privileges are not used for personal gain. An educator maintains integrity with students, colleagues, parents, families, the community or businesses when accepting gifts, gratuities, or favors. To avoid bias or prejudice, an educator needs to ensure decisions made about students or school policy are not negatively influenced by the socioeconomic status of parents, family members, community members or businesses.

Conduct unbecoming includes, but is not limited to, the following actions:

- a) Using public school property or public funds for personal use not in accordance with local, state or federal laws.
- b) Soliciting students or parents of students to purchase equipment, supplies, or services or to participate in activities that financially benefit the educator without notifying the superintendent or designee and/or not in accordance with local board policy.
- c) Accepting gifts from vendors or potential vendors for personal use or gain exceeding \$25 in value.
- d) Tutoring students in one's district for profit without notifying the superintendent or designee and/or not in accordance with local board policy.
- e) Coaching and/or promoting athletic or artistic camps, off-season leagues, etc., in one's district for profit without notifying the superintendent or designee and/or not in accordance with local board policy.
- f) Failing to transparently and responsibly account for and manage any and all school-related funds in accordance with local board policies and local, state, or federal laws, including rules, opinions, and bulletins promulgated by the Ohio Auditor of State or the Ohio Ethics Commission.
- g) Failing to account for funds related to school activities collected from students, parents, family members, community members, staff or peers in accordance with local board policy.
- h) Co-mingling public or school-related funds with personal funds or checking accounts.
- i) Submitting fraudulent requests for reimbursement of expenses.
- j) Failing to pay a finding for recovery issued by the Ohio Auditor of State.

The disciplinary actions for violations of Principle 7 can be found on [page 14](#).

8. Commitment to Contract

Educators shall fulfill all of the terms and obligations detailed in their employment contract with the local board of education, public educational agency, or community school for the duration of the contract.

An educator knows and understands the rights and responsibilities as outlined in the employment contract and adheres to the terms and conditions of the agreement by fulfilling responsibilities and duties required of the position.

Conduct unbecoming includes, but is not limited to, the following actions:

- a) Abandoning the contractual agreement for professional services without the consent of the board of education or designee, according to Ohio Revised Code 3319.15, or without the consent of the community school's governing authority or operator, according to Ohio Revised Code 3314.103.
- b) Willfully refusing to perform services and duties required by the contract, except as outlined in Ohio Revised Code Chapter 4117.
- c) Violating or interfering with due process as outlined in the contractual agreement.

The disciplinary actions for violations of Principle 8 can be found on page 15.

9. Appropriate and Responsible Use of Technology

Educators shall always use technology, electronic communications, and social media in a responsible and professional manner and appropriately safeguard the unauthorized use or access to electronic devices and data entrusted to them.

An educator responsibly creates, uses, consumes, distributes, and protects information and data across all technologies. Educators shall maintain appropriate boundaries with colleagues, students, and the school community when using technology and electronic communications. While maintaining their constitutional rights, educators recognize that when using technology, the words they choose and the content of their statements can reflect negatively on their positions, schools, and the profession.

Conduct unbecoming includes, but is not limited to, the following actions:

- a) Negligently failing to prevent others from unauthorized use of professional electronic devices to access improper or inappropriate material or confidential data.
- b) Negligently failing to prevent students from unauthorized use of the educator's personal electronic devices to access improper or inappropriate material or confidential data.
- c) Accessing inappropriate, non-school-related material on a school-owned device not in accordance with local board policy.
- d) Presenting inappropriate, non-school-related media to students.
- e) Using technology, social media, or other electronic communications to promote inappropriate communications with students (for example, excessively, for non-educational purposes or requesting students or minors to conceal communication).
- f) Knowingly failing to report and/or address instances of electronic or online harassment, bullying, or intimidation of a student.
- g) Knowingly failing to appropriately intervene when made aware of inappropriate or illegal images or material involving students or minors in electronic forms.
- h) Using technology, social media or other electronic communications to host, post, or distribute improper or inappropriate material that could reasonably be accessed by the school community (includes, but is not limited to, pornography, obscene material, promotion of drug use or underage consumption of alcohol, promotion of violence, disparagement of students, and disparagement based upon gender, gender identity, race, sex, ethnicity, sexual orientation, disability, military status, or religion).
- i) Using school technology to run, manage, or promote a personal business venture.

The disciplinary actions for violations of Principle 9 can be found on [page 15](#).

Disciplinary Procedure

DUE PROCESS

The State Board of Education has the authority to suspend, limit, revoke or deny licenses; issue a letter of admonishment; or enter into a consent agreement with an applicant or licensed educator to administer the educator discipline process in accordance with Chapter 33 and Chapter 119 of the Ohio Revised Code and Chapter 3301 of the Ohio Administrative Code.

When an educator is reported to the Ohio Department of Education for an allegation of unprofessional conduct made by a principal, parent, teacher, student, superintendent or community member, the Department will determine whether the State Board of Education has jurisdiction to investigate the matter pursuant to Section 3319.311 of the Ohio Revised Code.

If it is determined an investigation is warranted, a thorough investigation would be conducted pursuant to Section 3319.311 of the Ohio Revised Code at which time **all mitigating circumstances will be fully examined to determine whether the allegation can be substantiated**. If an allegation is reported and turns out to be a false allegation or unsubstantiated, all information obtained in the case file will be sealed two years after the investigation is concluded in accordance with Section 3319.311 of the Ohio Revised Code.

If the results of an investigation warrant initiating an action under Section 3319.31 of the Ohio Revised Code, **an educator is entitled to all due process rights** afforded pursuant to Chapter 33 and Chapter 119 of the Ohio Revised Code and Chapter 3301 of the Ohio Administrative Code.

DISCIPLINARY GUIDELINES

Upon a determination that the results of an investigation warrant the State Board of Education to impose a disciplinary action pursuant to Section 3319.31 of the Ohio Revised Code, the State Board may impose an appropriate penalty within the presumptive range on a **case-by-case basis**, as set forth in these disciplinary guidelines, unless the aggravating and mitigating factors in an individual case warrant a penalty outside the presumptive range.

The range of disciplinary actions are presumptions and may include a letter of admonishment, consent agreement, limitation of a license, suspension of a license, revocation of a license, or denial of a license. The terms "suspension," "revocation," and "denial" shall mean any length of suspension, revocation or denial, including permanent revocation or permanent denial. A license may be suspended or limited pursuant to a consent agreement or State Board resolution. A complete explanation of the types of disciplinary actions can be accessed on the Ohio Department of Education's website, education.ohio.gov, search keywords *disciplinary actions*.

The State Board may determine that a penalty outside the range of the disciplinary guidelines is more appropriate in an individual case based upon aggravating and mitigating factors as outlined in Sections 3301-73-21 (A) (B) and Section 3301-20-01 (E) of the Ohio Administrative Code, or any other factors the State Board, district or educational entity, or superintendent consider relevant. Further, the State Board may determine not to impose a disciplinary action involving an educator's licensure or application for licensure based upon conduct being a minor violation or a local school district or educational entity appropriately addressing the violation of the Licensure Code of Professional Conduct for Ohio Educators at the district or building level.

The Licensure Code of Professional Conduct for Ohio Educators applies to all individuals licensed by the Ohio Department of Education. The presumptive ranges are only applicable for disciplinary actions involving an educator's licensure or application for licensure. The presumptive ranges are not applicable for any discipline imposed at the local level. Possible discipline at the local level must follow all local contractual provisions including, but not limited to, due process, progressive discipline, and just cause. However, an educator who violates one or more of the principles may be subject to discipline at both the state and local levels.

Following are the disciplinary actions, including a presumptive range of penalties that shall apply to violations of the *Licensure Code of Professional Conduct for Ohio Educators*.

DISCIPLINARY ACTIONS

1. Professional Behavior

Educators shall behave as professionals realizing that their actions directly reflect on the status and substance of the education profession.

If an educator violates Principle 1, the presumption for the appropriate range of disciplinary action is the following:

- I. Suspension (one day to one year) of a license depending upon the violation of the testing procedure;
- II. Suspension of a license until the educator comes into compliance with the required background checks;
- III. Letter of admonishment up to revocation/denial of a license for other acts unbecoming to the professional conduct of educators.

2. Professional Relationships with Students

Educators shall maintain a professional relationship with all students at all times, both in and out of the classroom.

If an educator violates Principle 2, the presumption for the appropriate range of disciplinary action is the following:

- I. Revocation/denial of a license for sexual/physical abuse;
- II. Suspension (one day to five years) of a license up to revocation/denial of a license for psychological or emotional abuse or for soliciting, encouraging, engaging or consummating an inappropriate written, verbal, psychological, emotional or physical relationship with a student or minor;
- III. Suspension (one day to five years) of a license for disparagement, inappropriate language, physical altercations, inappropriate supervision or harassment.

3. Accurate Reporting

Educators shall accurately report information required by the local board of education or governing board, state education agency, federal agency or state or federal law.

If an educator violates Principle 3, the presumption for the appropriate range of disciplinary action is the following:

- I. Suspension (one day to three years) of a license for falsifying, intentionally misrepresenting, willfully omitting, or being negligent in reporting criminal history, discipline of a professional license or credential, academic awards or employment history;
- II. Suspension (three years to five years) of a license up to revocation/denial of a license for falsifying, intentionally misrepresenting, willfully omitting, or being negligent in reporting professional qualifications, or college or professional development credit and/or degrees;
- III. Suspension (one day to five years) of a license for all other violations of this principle.

4. Criminal Acts

Educators shall adhere to federal, state and local laws and statutes.

If an educator violates Principle 4, the presumption for the appropriate range of disciplinary action is the following:

- I. Revocation/denial of a license for a criminal offense that is an offense of violence, theft offense, drug abuse offense or sexually oriented offense, as defined in Ohio Administrative Code Rule 3301-20-01;
- II. Revocation/denial of a license for a criminal offense involving the school community or where the victim is a student or minor;
- III. Suspension (one day to five years) of a license up to revocation/denial of a license for all other felony criminal acts;
- IV. Letter of admonishment up to revocation/denial of a license for all other misdemeanor criminal acts (for example, disorderly conduct, trespassing, assault, passing bad checks, fraud, domestic violence, possession of drugs).

5. Confidentiality

Educators shall comply with local, state and federal laws related to maintaining confidential information.

If an educator violates Principle 5, the presumption for the appropriate range of disciplinary action is suspension (one day to two years) of a license.

6. Use, Possession, or Unlawful Distribution of Alcohol, Drugs and Tobacco

Educators shall not use, possess or unlawfully distribute illegal or unauthorized drugs. Educators shall not use alcohol during any school activity involving students, minors or underage persons. Educators shall not use tobacco during any school activity except in designated areas. Educators shall not furnish, provide or encourage students or underage persons to use, possess or unlawfully distribute alcohol, tobacco, or illegal or unauthorized drugs

If an educator violates Principle 6, the presumption for the appropriate range of disciplinary action is the following:

- I. Suspension (one year to five years) of a license up to revocation/denial of a license for violations dealing with students, minors, or underage persons or school activities;
- II. Suspension (one day to five years) of a license for misuses unrelated to students, minors, or underage persons or school activities.

7. Financial Management and Improper Compensation for Personal Gain

Educators shall ensure all school funds and accounts are managed in a responsible and transparent manner. Educators shall ensure school property, public funds or fees paid by students or the community are not used for personal gain. Educators shall not make decisions based upon gifts, gratuities, favors or the socioeconomic status of parents, family members, community members or businesses.

If an educator violates Principle 7, the presumption for the appropriate range of disciplinary action is the following:

- I. Suspension (two years to five years) up to revocation/denial of a license for theft of school property or school funds;
- II. Letter of admonishment up to suspension (one day to one year) of a license for using one's position for personal gain;
- III. Suspension (one day to five years) up to revocation/denial of a license for all other violations of this principle.

8. Commitment to Contract

Educators shall fulfill all of the terms and obligations detailed in their employment contract with the local board of education, public educational agency, or community school for the duration of the contract.

If an educator violates Principle 8, the presumption for the appropriate range of disciplinary action is a letter of admonishment up to suspension (one day to one year) of a license.

9. Appropriate and Responsible Use of Technology

Educators shall always use technology, electronic communications, and social media in a responsible and professional manner and appropriately safeguard the unauthorized use or access to electronic devices and data entrusted to them.

If an educator violates Principle 9, the presumption for the appropriate range of disciplinary action is the following:

- I. Letter of admonishment up to suspension (one day to five years) of a license for negligence in failing to prevent others from unauthorized access of professional devices and students from unauthorized access of personal devices; accessing inappropriate, non-school-related material on school-owned devices; and use of school technology to run, manage, or promote a personal business;
- II. Suspension (one day to five years) of a license up to revocation/denial of a license for presenting inappropriate, non-school-related media to students and for violations involving the use of technology to host, post, or distribute inappropriate material;
- III. Suspension (one year to five years) of a license up to revocation/denial of a license for violations involving use of technology for promoting and/or engaging in inappropriate communication with students;
- IV. Suspension (one day to five years) of a license for failing to report or address instances of electronic or online harassment, bullying, or intimidation of a student, or failing to appropriately intervene when made aware of inappropriate or illegal materials involving students or minors appearing in electronic form.

This image shows a single sheet of white paper with horizontal ruling lines. The lines are evenly spaced and run across the width of the page. There are no margins, text, or other markings on the paper.

Ohio Department of Education

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Licensure Code of Professional Conduct for Ohio Educators